

## 25STCV33448 25STCV33448

County: los-angeles

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Case Number: 25STCV33448 Hearing Date: July 22, 2026 Dept: 407

Tentative Ruling

Judge Brock T. Hammond, Department 407

HEARING DATE: July

22, 2026 TRIAL

DATE: Not set

CASE: Pauline Giscombe v. Arthur Yoon, et al.

CASE NO.: 25STCV33448

DEFENDANT

THE MAJORCA HOMEOWNERS ASSOCIATION'S MOTION FOR

JUDGMENT

ON THE PLEADINGS

MOVING

PARTY: Defendant The Majorca Homeowners

Association

RESPONDING

PARTY: Pauline Giscombe, in pro per

Plaintiff

Pauline Giscombe ("Plaintiff") has owned and resided at 531 N. Rossmore, #201,

Los Angeles, CA 90004 (the "Property") since 1998. Plaintiff alleges that, on November 11, 2023,

she was violently attacked and physically and emotionally harassed by Defendants, Arthur Yoon, Redpoint Realty, and Majorca Homeowners Association (the "HOA").

## I. BACKGROUND

On November 17, 2025, Plaintiff commenced this action against Defendants, alleging causes of action for (1) elder abuse, (2) harassment, (3) intentional infliction of emotional distress, (4) breach of the covenant of quiet enjoyment, and (5) intentional infliction of physical harm.

On January 9, 2026, the HOA filed an Answer to the Complaint.

On March 3, 2026, the HOA filed this motion for judgment on the pleadings.

On July 8, 2026, Plaintiff filed an opposition.

On July 13, 2026, the HOA filed a reply.

On July 20, 2026, Plaintiff filed a document entitled, "PLAINTIFF'S RESPONSE TO DEFENDANT THE MAJORCA HOMEOWNERS ASSOCIATION'S REPLY BRIEF; MEMORANDUM OF POINTS AND AUTHORITIES IN SUPPORT THEREOF:". The brief is unauthorized and untimely and will therefore be disregarded by this court. (See CRC 3.1300(d); *Bozzi v. Nordstrom, Inc.* (2010) 186 Cal.App.4th 755, 765 ("A trial court has broad discretion under rule 3.1300(d) of the California Rules of Court to refuse to consider papers served and filed beyond the deadline without a prior court order finding good cause for late submission.").)

## II. LEGAL STANDARD

"A motion for judgment on the pleadings performs the same function as a general demurrer, and hence attacks only defects disclosed on the face of the pleadings or by matters that can be judicially noticed. [Citations.]" (Burnett v. Chimney Sweep (2004) 123 Cal.App.4th 1057

1064.)<sup>2</sup> The court must assume the truth of all properly pleaded material facts and allegations, but not contentions or conclusions of fact or law.<sup>3</sup> (Blank v. Kirwan (1985) 39 Cal.3d 311, 318; Wise v. Pacific Gas and Elec. Co. (2005) 132 Cal.App.4th 725, 738.)<sup>4</sup> “A judgment on the pleadings in favor of the defendant is appropriate when the complaint fails to allege facts sufficient to state a cause of action.<sup>5</sup> (Code Civ. Proc., § 438(c)(3)(B)(ii).)”<sup>6</sup> (Kapsimallis v. Allstate Ins. Co. (2002) 104 Cal.App.4th 667, 672.)<sup>7</sup> “Presentation of extrinsic evidence is therefore not proper on a motion for judgment on the pleadings.<sup>8</sup> [Citation.]”<sup>9</sup> (Cloud v. Northrop Grumman Corp. (1998) 67 Cal.App.4th 995, 999.)<sup>10</sup> “The common law ground for a motion for judgment on the pleadings is identical to the statutory ground[.]” (Korchemny v. Piterman (2021) 68 Cal.App.5th 1032, 1055.) Allegations are to be liberally construed.<sup>11</sup> (Code Civ. Proc., § 452.)<sup>12</sup><sup>13</sup>

If the motion for judgment on the pleadings is granted, it may be granted with or without leave to amend.<sup>14</sup> (Code Civ. Proc., § 438(h)(1).)<sup>15</sup> “Where a demurrer is sustained or a motion for judgment on the pleadings is granted as to the original complaint, denial of leave to amend constitutes an abuse of discretion if the pleading does not show on its face that it is incapable of amendment.”<sup>16</sup> (Virginia G. v. ABC Unified School Dist.(1993) 15 Cal.App.4th 1848, 1852.)<sup>17</sup>

### III. DISCUSSION

#### A.

##### Judicial Notice

Plaintiff’s request for judicial notice does not comply with California Rules of Court, rule 3.1113(l). For this reason, the request is DENIED.

#### B.

##### Analysis

The HOA challenges each cause of action. The court addresses each cause of action in turn.

##### 1. Elder Abuse (1st COA)

The HOA

argues the first cause of action is time barred. The argument has merit. "An action for assault, battery, or injury to, or for the death of, an individual caused by the wrongful act or neglect of another" must be brought within two years.

(Code Civ. Proc. § 335.1.) Here,

the Complaint alleges that Plaintiff "[o]n or about November 11, 2023, (sic) violently

attacked and physically and emotionally harassed and harmed by Defendant." (Complaint, ¶ 6.) This action was filed more than two years

later on November 17, 2025. On its face,

the claim is barred by the statute of limitations. In response, Plaintiff argues the incident

actually took place on November 19, 2023 and was reported to the HOA on that

date. However, given the correct date

does not appear in the pleading, the court will sustain the demurrer with leave to amend.

The

HOA also argues the first cause of action fails to allege facts sufficient to

constitute a cause of action. This

argument is also meritorious. To state a cause of action for

elder abuse and neglect, a plaintiff must allege "[p]hysical abuse, neglect,

abandonment, isolation, abduction, or other treatment with resulting physical

harm or pain or mental suffering." (Welf. & Inst. Code, § 15610.07,

subd. (a)(1).) To plead elder abuse by physical abuse, the plaintiff must

allege facts establishing that: (1) the defendant engaged in the physical abuse

of the elder; (2) that the elder was harmed; and (3) that the abuse was a

substantial factor in causing the harm. (CACI No. 3106, citing Welf. & Inst. Code,

§§ 15610.07; 15610.27; 15610.63.) "Physical abuse" includes assault,

battery, unreasonable physical restraint, prolonged or continual deprivation of

food or water, sexual assault, and certain forms of physical or chemical

restraint. (Welf. & Inst. Code, § 15610.63, subs. (a)–(f).) Here, the Complaint merely alleges that

"[o]n or about November 11, 2023, (sic) violently attacked and

physically and emotionally harassed and harmed by Defendant" and that such

conduct constitutes elder abuse.

(Complaint, ¶¶ 6, 9.) It is not clear what the HOA did which forms

the basis for Plaintiff's elder abuse claim.

Plaintiff acknowledges the deficiency.

(See Opp., p. 4.)

Accordingly,

the motion for judgment on the pleadings of the first cause of action is GRANTED. Leave to amend is GRANTED.

## 2. Harassment (2nd COA)

The HOA

argues the second cause of action is time barred. The argument is meritorious for the same reasons discussed above. Like elder abuse claims, civil harassment claims are subject to a two-year statute of limitations. (Code Civ. Proc. § 335.1.)

The HOA

also argues the second cause of action to allege facts sufficient to constitute a cause of action. This argument is also meritorious. “The elements of unlawful harassment, as defined by the language in section 527.6, are as follows: (1) ‘a knowing and willful course of conduct’ entailing a ‘pattern’ of ‘a series of acts over a period of time, however short, evidencing a continuity of purpose’; (2) ‘directed at a specific person’; (3) ‘which seriously alarms, annoys, or harasses the person’; (4) ‘which serves no legitimate purpose’; (5) which ‘would cause a reasonable person to suffer substantial emotional distress’ and ‘actually cause[s] substantial emotional distress to the plaintiff’; and (6) which is not a ‘[c]onstitutionally protected activity.’ (Schild v. Rubin (1991) 232 Cal.App.3d 755, 762.) Here, the Complaint is devoid of factual allegations to satisfy each element of this claim. Like the first cause of action, Plaintiff concedes the defects. (See Opp., p. 4.)

Accordingly,

the motion for judgment on the pleadings of the second cause of action is GRANTED. Leave to amend is GRANTED.

## 3. Intentional Infliction of Emotional Distress (3rd COA)

The HOA

argues the third cause of action is time barred. The argument is meritorious for the same reasons discussed above. The two-year statute of limitations applies to claims for intentional infliction of emotional distress. (Wassmann v. South Orange County Community College District (2018) 24 Cal.App.5th 825, 852-853.)

The

HOA also argues the third cause of action fails to allege facts sufficient to

constitute a cause of action. This argument is also meritorious. The elements of an intentional infliction of emotional distress ("IIED") claim are: (1) that defendant's conduct was outrageous; (2) that defendant intended to cause plaintiff emotional distress, or that defendant acted with reckless disregard of the probability that plaintiff would suffer emotional distress, knowing that plaintiff was present when the conduct occurred; (3) that plaintiff suffered severe emotional distress, and (4) that defendant's conduct was a substantial factor in causing plaintiff's severe emotional distress. (CACI No. 1600; Hughes v. Pair (2009) 46 Cal.4th 1035, 1050-51.) "It is not enough that the conduct be intentional and outrageous. It must be conduct directed at the plaintiff, or occur in the presence of a plaintiff of whom the defendant is aware." (Christensen v. Superior Court (1991) 54 Cal.3d 868, 903-904.) Here, the Complaint is devoid of factual allegations to satisfy each element of the claim. Like the first and second causes of action, Plaintiff concedes the defects. (See Opp., p. 4.)

Accordingly, the motion for judgment on the pleadings of the third cause of action is GRANTED. Leave to amend is GRANTED.

#### D. Breach of the Covenant of Quiet Enjoyment (4th COA)

The HOA argues the fourth cause of action fails to allege facts sufficient to constitute a cause of action. The argument is meritorious. The necessary elements for breach of the covenant of quiet enjoyment are: (1) a lease agreement between plaintiff and defendant; (2) the absence of language contrary to the implied covenant that tenant shall have quiet enjoyment and possession; (3) an act or omission of the landlord, or anyone claiming under the landlord, which substantially interferes with a tenant's right to use and enjoy the premises for purposes contemplated; and (4) an applicable remedy. (Andrews v. Mobile Aire Estates (2005) 125 Cal.App.4th 578, 588-591.) Here, the Complaint is devoid of factual allegations to satisfy each element of the claim. Like the first, second, and third causes of action, Plaintiff concedes the defects. (See Opp., p. 4.)

Accordingly,

the motion for judgment on the pleadings of the fourth cause of action is GRANTED. Leave to amend is GRANTED.

#### E. Intentional Infliction of Physical Harm (5th COA)

There is no cause of action titled intentional infliction of physical harm. However, to the extent Plaintiff refers to battery or assault, the fifth cause of action is time barred for the same reasons discussed above. Causes of action "for assault, battery, or injury to, or for the death of, an individual caused by the wrongful act or neglect of another" are subject to a two-year statute of limitations. (Code Civ. Proc. § 335.1.)

The HOA also argues the fifth cause of action fails to allege facts sufficient to constitute a cause of action. This argument is also meritorious. The Complaint is devoid of factual allegations to satisfy each element of a claim for battery (see CACI No. 1300) or assault (see CACI No. 1301). Like the preceding causes of action, Plaintiff concedes the defects. (See Opp., p. 4.)

Accordingly, the motion for judgment on the pleadings of the fifth cause of action is GRANTED. Leave to amend is GRANTED.

#### IV. CONCLUSION

The motion for judgment on the pleadings is Granted. Leave to amend is Granted.

Plaintiff is ordered to serve and file the First Amended Complaint within 20 days of this order.

Moving party to give notice, unless waived.

Dated: July 22, 2026

Brock T. Hammond

Judge of the Superior Court